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Skelton: Legislators return with new bills to help Californians

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Like little flowers emerging from a charred landscape, some promising pandemic relief bills are sprouting in a California Legislature devastated by COVID-19.

They've scarcely been noticed in the fixation over President Trump's immoral, undemocratic attempt to overturn the voters' election of Joe Biden — and Gov. Gavin Newsom's French Laundry dining and unemployment benefit debacles.

The pandemic-related bills, introduced when the Legislature convened its new session last week, deserve serious consideration.

Assemblyman Adam Gray (D-Merced) introduced a bill, AB 62, that would allow small businesses and those deemed essential — such as healthcare facilities, emergency services and food processing — to take a dollar-for-dollar tax credit on virus-protection expenses required by the state. Covered would be such things as employee testing, masks, ventilation systems and plexiglass barriers.

The credit would be taken on state tax returns. Spend $20,000 protecting employees and customers, and your taxes would be reduced by that amount.

The cost to the state treasury in lost tax revenue? Lots.

"Hundreds of millions to billions of dollars," says Gray spokesman Adam Capper. "Whatever it costs, that's how much [state] regulations cost California businesses."

"Instead of putting our money where our mouth is," Gray says, "state regulators continue to push the costs associated with COVID-19 onto employers, many of whom are already struggling to keep their doors open."

Newsom estimated last week that the state would garner a $15.5-billion tax windfall in the next fiscal year. Recently, the nonpartisan Legislative Analyst's Office projected $26 billion.

State Sen. Andreas Borgeas (R-Fresno) introduced a bill, SB 74, that would require the state to spend 10% of its surplus — whatever the size — on grants to small businesses.

Newsom recently set aside $500 million for small-business grants. The governor also allowed most businesses to delay, for three months, handing over to government the sales taxes they collect.

Borgeas contends that isn't enough.

"California deserves more aggressive investment in business relief efforts to revitalize our economy," he says.

Borgeas' bill probably doesn't stand a prayer given he's a lowly Republican in a Legislature that Democrats control with supermajorities in each house. But it's still a good idea. Maybe a Democrat can steal it.

The GOP senator, a law professor, has also been pressing Newsom for data that justify restaurant shutdowns, especially outdoor dining.

"What surprised me is they don't have that information," Borgeas says. "Restaurants being locked down deserve to

understand whether it's science-driven. Restaurants are trying to make their case, and they're not being heard."

Assemblyman Jesse Gabriel (D-Encino) introduced a bill, AB 61, that would allow local governments to permit restaurants to expand outdoor dining — once it's legal again.

Assembly Budget Committee Chairman Phil Ting (D-San Francisco) introduced a bill, AB 10, that would require public schools to reopen once infection rates drop. Local districts would have less control over when they resume classroom teaching.

The state would have to provide more clarity to its safety guidelines, Ting says. Under his proposal, there could be hybrid teaching — a mix of in-person and distanced.

"Right now, many schools that are open are flouting guidelines," he says. "It's not clear whether they're requiring students to wear masks and if desks are distanced."

But the vast majority of public schools are closed.

"It's harder to teach online," Ting notes. "Harder to keep kids' attention. There are fewer hours of instruction. Many kids aren't even showing up for class....

"I'm worried about the learning loss — also the social isolation. Kids want to be around other kids. They want to see the teacher. We have to do better."

Gray says politicians — and everyone — should come together as they did in World War II, set aside partisanship and unite behind combating the virus and saving small businesses.

"Stop the finger-pointing and blame — the debating masks vs. not masks," Gray says. "Focus on everybody helping everybody get through this tough time.

"That's my wish for Christmas."

That may be asking too much from Santa.

George Skelton is a Los Angeles Times columnist. ©2020 Los Angeles Times. Distributed by Tribune Content Agency.

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